

Examples would be where duty was overpaid or where goods have been classified incorrectly in error, leading to payment of duty at a rate higher than that due under the correct tariff classification. Duty may also be repaid under this provision where goods have been 'short-shipped', i.e. where the quantity declared exceeds that which landed.

It should be noted that Tariff Classification Regulations are regularly adopted and published to prevent disparities in the tariff classification of goods in the Combined Nomenclature. The Combined Nomenclature is a classification system, which is based on the Harmonised System and is operated in all Member States of the European Union. These Regulations may have the effect of altering the rates of customs duties that have been applied prior to their adoption. A Tariff Classification Regulation does not have retroactive effect. However, where the principles which gave rise to the tariff classification adopted in the Classification Regulation were already applicable, then the effect of the Regulation may also be applied retroactively. Tariff Codes and related information can be obtained from the [TARIC](#) website.

Applications for repayment or remission under this provision must be made within 3 years of notification of the customs debt.

Under this provision, the repayment or remission can be granted either on own initiative of the customs authorities or following an application by the person concerned.

10.2.2 Where a customs declaration is invalidated in accordance with Article 174 UCC. (Article 116 (1), 2nd subparagraph UCC) and Article 148 UCC DA.

In this situation a customs declaration could be invalidated where, for example, goods which were entered for free circulation were actually intended to be entered into a customs procedure not involving payment of import duties, for example, inward processing or customs warehousing. Repayment of duty may be made subject to the officers concerned being satisfied that:

- Any use of the goods has not contravened the conditions of the customs regime under which they should have been placed.
- When the goods were declared, they were intended to be placed under another customs regime, all the requirements of which they fulfilled.
- The goods will be entered immediately for the customs regime for which they were actually intended. However, repayment may be allowed on goods which have already been re-exported provided the conditions at (a) and (b) have been complied with (Article 174 UCC and Article 148 UCC DA).

Where the customs authorities have informed the declarant of their intention to examine the goods, an application for invalidation of the customs declaration cannot be accepted before the examination has taken place. An application for repayment